



BRAND NAME JUSTIFICATION UNDER SIMPLIFIED PROCEDURES UNDER FEDERAL ACQUISITION REGULATION (FAR) 13.106-1(b)(1)

1. AGENCY AND CONTRACTING ACTIVITY: The Biomedical Advanced Research and Development Authority (BARDA), a vital component of the Assistant Secretary for Preparedness and Response (ASPR) at the U.S Department of Health and Human Services (HHS), plans to contract the purchase of a brand-name software suite known as Statistical Analysis for the Division of Clinical Development (DCD).

2. DESCRIPTION OF ACTION: This document provides the justification and approval for a brand-name item by FAR 13.106-1(b)(1). BARDA proposes to issue a firm fixed price (FFP) contract to procure the SAS software suite, a statistical analysis tool designed to support DCD. The action includes a 12-month base with four one-year options.

3. DESCRIPTION OF SUPPLIES/SERVICE: BARDA/ASPR plans to leverage SAS to enable BARDA statisticians to support internal and external stakeholders with biomedical research projects and data analysis. This support covers data management, development and statistical analysis plans, and interpretation of results for BARDA-sponsored clinical trials- from early planning stages through post-study analyses and multiple study meta-analyses.

The scope of work shall provide SAS AS Analytics Pro (on SAS 9.x): Includes Base SAS, SAS/STAT, and SAS/GRAPH (PC, Windows 64-bit)SAS/Access to PC File Formats: (PC Windows 64-bit)SAS/IML: (PC, Windows 64-bit) with a total of 10 licenses. The period of performance is one year with four additional one-year option periods.

4. AUTHORITY CITED: This action is under the procedure of Federal Acquisition Regulation (FAR) 13.106-(b)(1), which permits brand name justification under simplified acquisition. This exception is warranted due to the unique qualifications of SAS and specific requirements. Statisticians working in biomedical science utilize various software and tools for different purposes. Some may use specialized tools or programming languages to develop specialized code for simulation or research. The collaborative nature of BARDA missions requires 1) utilizing a wide range of already developed foundation procedures within a limited timeline; 2) utilizing codes developed by collaborators; and 3) having an independent validation tool when other programming languages are used.

5. REASONS FOR AUTHORITY CITED: Statisticians in biomedical science utilize various software. Some may use tools for different purposes, while others use specialized tools or programming languages to develop specialized code for simulation or research. BARDA requires SAS and associated licenses to perform complex statistical analysis data modeling and reporting. Specific modules include SAS Analytics Pro (on SAS 9), SAS/Access to PC File

Formats (PC Windows 64-bit), and SAS/IML: (PC, Windows 64-bit). The program requires utilizing existing scripts and codes written specifically for SAS. SAS provides specialized statistical and analytical capabilities essential to DCD's needs. These capabilities are not readily available in other software packages.

6. MARKET RESEARCH: Market Research was conducted in accordance with FAR Part 10 to ensure open competition, explore all available options, and uphold the key principles guiding this approach. The technique used to identify potential companies capable of providing this unique software involved Google search and SBA Dynamic Small Business Search, which were utilized to identify potential small business vendors, specifically using NAICS Code 423430-Computer and Computer Peripheral Equipment and Software Wholesalers. As well as reaching out to SAS for authorized resellers of the software suite.

7. FAIR AND REASONABLE DETERMINATION: I hereby determine that the anticipated price for this order will be fair and reasonable. The techniques identified at FAR 13.106-3(a), "Basis for Award," will be used to ensure the award will be at fair and reasonable prices. Certified Cost and Pricing Data will not be obtained.

CERTIFICATION

The contracting officer concludes that the expected price will be fair and reasonable. This assessment was based on a thorough evaluation in which prices were compared with similar items in related industries, benchmarked against a competitive published price list, and analyzed about those obtained through competitive market research for identical or similar services.

La Vivian R.
Peasant -S

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La Vivian Peasant
Contracting Officer